



INTERNATIONAL BOUNDARY AND WATER COMMISSION
UNITED STATES AND MEXICO
ACQUISITIONS DIVISION

March 06, 2025

Sent Via Email: Notice Sam.gov

Subject: US SECTION INTERNATIONAL BOUNDARY AND WATER COMMISSION
(USIBWC) IMPLEMENTATION OF CLASS DEVIATION

The USIBWC is implementing recent changes to our procurement processes in response to the class deviation from the Federal Acquisition Regulation (FAR) and Executive Orders 14173 and 14168. The following actions and updates are required to ensure compliance and maintain alignment with federal regulations and directives.

References:

- CAAC Letter 2025-01 Supplement 1
- CAAC Letter 2025- 02 Supplement 1
- FAR 1.400, Deviations from the FAR
- FAR 1.404, Class deviations
- Executive Order 14173
- Executive Order 14168

Action Items:

1. Exclusion of Specific Provisions and Clauses: The following provisions and clauses must be excluded from new solicitations or contracts:

- 52.204-8 Annual Representations and Certifications (JAN 2025)
- 52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services (MAY 2024)
- 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025)
- 52.213-4 Terms and Conditions—Simplified Acquisitions (Other Than Commercial Products and Commercial Services) (JAN 2025)
- 52.223-1 Biobased Product Certification (MAY 2024)
- 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024)
- 52.223-10 Waste Reduction Program (MAY 2024)
- 52.223-23 Sustainable Products and Services (MAY 2024)

2. Inclusion of Specific Provision and Clause Deviations: Ensure the following deviations are included in new solicitations or contracts, if applicable:

- 52.204-8 Annual Representations and Certifications (JAN 2025) (DEVIATION FEB 2025)
- 52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services (MAY 2024) (DEVIATION FEB 2025)

- 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)
- 52.213-4 Terms and Conditions—Simplified Acquisitions (Other Than Commercial Products and Commercial Services) (JAN 2025) (DEVIATION FEB 2025)
- 52.223-1 Biobased Product Certification (MAY 2024) (DEVIATION FEB 2025)
- 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION FEB 2025)
- 52.223-10 Waste Reduction Program (MAY 2024) (DEVIATION FEB 2025)
- 52.223-23 Sustainable Products and Services (MAY 2024) (DEVIATION FEB 2025)

3. Modifications to Existing Contracts: For existing contracts, the U.S. International Boundary and Water Commission (USIBWC) will implement changes via unilateral modification when feasible. This class deviation will be published on the USIBWC webpage to comply with Executive Orders 14148 and 14208.

4. System Updates and Representations: Please note that system updates may lag behind policy changes. The System for Award Management (SAM) may still require entities to complete representations based on provisions that are not included in agency solicitations, such as:

- 52.223-22 Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation
- Paragraph (t) of 52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services

Agencies will not consider or use these representations. Entities are not required to, nor able to, update their entity registration to remove these representations in SAM.

5. Updates Pertaining to Executive Order 14208 and BioPreferred® Program: In compliance with Section 2 of Executive Order 14208, the removal of requirements related to Executive Order 14057 eliminates all non-statutory sustainability requirements or preferences in purchases of food service wares, including paper straws. Additionally, the attachment reflects the recent updates to Code of Federal Regulation citations for the U.S. Department of Agriculture's BioPreferred® Program, a statutory purchasing preference program.

The contract numbers attached are affected by this class deviation notice are attached in this special notice.

Philip Johnson
Supervisory Contracting Officer

Attachments:

- (1) List of Vendors Affected

Attachment 1

191BWC22C0005	ACCESS COMMUNICATIONS GROUP LLC
191BWC21P0013	ADS LLC
191BWC24F0065	AMERICAN MATERIAL HANDLING INC
191BWC22C0016	APPLIED SECURITY TECHNOLOGIES INC
191BWC22F0118	ARCADIS U.S., INC.
191BWC24F0086	ARCADIS U.S., INC.
IBM17T0010	ARCADIS U.S., INC.
191BWC21F0061	AT&T ENTERPRISES, LLC
191BWC20F0078	ATT MOBILITY LLC
191BWC23F0069	CATERPILLAR INC
191BWC24F0099	CATERPILLAR INC
191BWC22F0117	CDM FEDERAL PROGRAMS CORPORATION
191BWC23F0074	CDM FEDERAL PROGRAMS CORPORATION
191BWC24P0065	CDW GOVERNMENT LLC
191BWC24C0005	CITY OF SAN DIEGO
191BWC23F0080	DEPT OF THE ARMY-DC
191BWC23P0072	DEPT OF THE ARMY-DC
191BWC23F0027	DHL ANALYTICAL INC
191BWC24F0095	EGC-AGEISS LLC
191BWC24F0096	EGC-AGEISS LLC
191BWC24P0034	JNV GROUP
191BWC24P0035	JNV GROUP
191BWC21F0041	KEARNEY & COMPANY, P.C.
191BWC23F0051	KYOCERA DOCUMENT SOLUTIONS AMERICA INC
191BWC22C0015	LAW ENFORCEMENT SPECIALISTS INC
191BWC24C0003	LH&J/ARCADIS JOINT VENTURE, L.L.P.
191BWC22C0010	MOMAR INC
191BWC22C0011	ODIN
191BWC23C0006	ODIN
191BWC24C0008	PCL CONSTRUCTION SERVICES PCL CONSTRUCTION A
191BWC24D0005	POLYDYNE INC.
191BWC22C0007	POWERGEN CONTROLS LLC
191BWC23P0085	ROBBWATERPARTNERS LLC
191BWC21C0003	SAK CONSTRUCTION LLC
191BWC22C0006	SAK CONSTRUCTION LLC
191BWC23P0060	SEABOARD CONTROLS, LLC
191BWC22C0002	SILVA SILVA INTERNATIONAL, LLC

191BWC22F0070	STANTEC CONSULTING SERVICES INC.
191BWC24P0085	STILES GENERAL CONTRACTORS LLC
191BWC23P0009	TATONKA TRUCKING LLC
191BWC23P0056	TEXAS ELECTRICAL & TESTING SERVICES LLC
191BWC24P0074	TEXAS ELECTRICAL & TESTING SERVICES LLC
191BWC22F0101	US ARMY CORPS OF ENGINEERS
191BWC22F0102	US ARMY CORPS OF ENGINEERS
191BWC22F0120	US ARMY CORPS OF ENGINEERS
191BWC20C0003	VEOLIA WATER WEST OPERATING SERVICES INC
191BWC23C0009	VEOLIA WATER WEST OPERATING SERVICES INC
191BWC23C0018	VEOLIA WATER WEST OPERATING SERVICES INC
191BWC24C0006	VEOLIA WATER WEST OPERATING SERVICES INC
191BWC22F0113	WILSON-FREESE AND NICHOLS JOINT VENTURE